

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 10-28 To Authorize and Approve the Negotiation of A Final Settlement of All Tribal Claims and Interests on the Arkansas Riverbed Properties

- WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and
- WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and
- WHEREAS,** the Chickasaw Nation is the owner of an undivided one-fourth (1/4) interest in one-half (1/2) of the Arkansas Riverbed from the juncture of the Arkansas and Canadian Rivers to the Arkansas state line, and
- WHEREAS,** the Chickasaw Nation has, for many decades, been attempting to resolve its claims against the United States government regarding breaches of trust duties and the unauthorized construction of the Kerr-McClellan Navigation System, and
- WHEREAS,** while its riverbed interests are extremely valuable, the Chickasaw Nation has determined that said properties will likely be the subject of further expensive litigation and will be very difficult to manage; by reason thereof the Chickasaw Nation has decided that value of its riverbed interests would better serve the Chickasaw people if it is placed in trust, and
- WHEREAS,** it is in the best interest of the Chickasaw Nation that it negotiate a complete and final settlement of its claims and interests on the Arkansas Riverbed.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature does hereby authorize and approve the general counsel of the Chickasaw Nation to negotiate with the United States government to resolve all tribal claims on the Arkansas River, which shall include but shall not be limited to:

- 1) Settlement of damage claim for the unauthorized construction of the Kerr-McClellan Navigation System;

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Explanation: The Chickasaw Nation is the owner of an undivided one-fourth (1/4) interest in one-half (1/2) of the Arkansas Riverbed from the juncture of the Arkansas and Canadian Rivers to the Arkansas state line, and the Chickasaw Nation has, for many decades, been attempting to resolve its claims against the United States government regarding breaches of trust duties and the unauthorized construction of the Kerr-McClellan Navigation System. While its riverbed interests are extremely valuable, the Chickasaw Nation has determined that said properties will likely be the subject of further expensive litigation and will be very difficult to manage; by reason thereof the Chickasaw Nation has decided that value of its riverbed interests would better serve the Chickasaw people if it is placed in trust, and it is in the best interest of the Chickasaw Nation that it negotiate a complete and final settlement of its claims and interests on the Arkansas Riverbed.

The Chickasaw Tribal Legislature does hereby authorize and approve the general counsel of the Chickasaw Nation to negotiate with the United States government to resolve all tribal claims on the Arkansas River, which shall include but shall not be limited to:

- 1) Settlement of damage claim for the unauthorized construction of the Kerr-McClellan Navigation System;
- 2) Settlement of claims of mismanagement of tribal assets on the riverbed by the Bureau of Indian Affairs, as set forth in an action now pending in the United States Court of Federal Claims styled "Choctaw Nation of Oklahoma and Chickasaw Nation vs. United States of America," Case Number 630-89-L;
- 3) Conveyance of all surface and subsurface interests owned by the Chickasaw Nation to the United States.

Said negotiations shall be subject to final approval of the Chickasaw Tribal Legislature.

Requested by: Governor Bill Anoatubby

Presented by: Robert D. Woolley, Sr., Chairperson

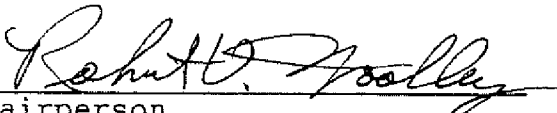
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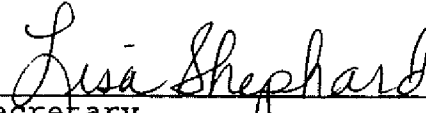
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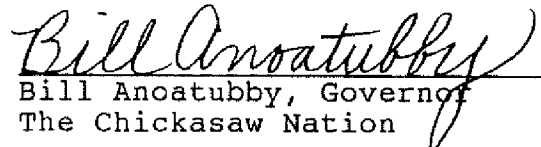
3) Conveyance of all surface and subsurface interests owned by the Chickasaw Nation to the United States.

BE IT FURTHER RESOLVED, that said negotiations shall be subject to final approval of the Chickasaw Tribal Legislature.

Executed in regular session of the Tribal Legislature meeting at Ada Oklahoma, August 20, 1993, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 20 1993